

Federal Constitution

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Art. 89—(cont.)

Clause (7)

The words “Subject to Article 161A” at the commencement were inserted by Act 26/1963, section 70, in force from 16-09-1963.

Clause (8)

Added by Act A585, subsection 24(1), in force from 01-02-1974, and subsequently amended by Act A1095, section 17, in force from 01-02-2001 to include in the Federal Territory of Putrajaya.

Note:

Article 89 of the Constitution shall not apply to the Federal Territory of Labuan and Article 8 of the Constitution shall not invalidate or prohibit any provisions of federal law for reservation of land for natives in the Federal Territory of Labuan or for alienation to them, or for giving them preferential treatment as regards the alienation of land in the Federal Territory of Labuan by the Federation—*see* subsection 18(2) of Act A585.

Art. 90

See Art. 89(7).

Clause (1A): Inserted by Act A566, section 13, in force from 16-12-1983.

or any other form of dealing or disposal of whatever description or nature; and

(b) “lease” includes any tenancy of whatever form or duration.

(2) Notwithstanding anything in this Constitution, the existing law in the State of Terengganu with respect to Malay holdings shall continue in force until otherwise provided by an Enactment of the Legislature of that State passed and approved as described in Clause (1) of Article 89.

(3) Any such Enactment of the Legislature of the State of Terengganu may make provision for Malay reservations corresponding with the existing law in force in any other State of a Ruler; and in that event the said Article 89 shall have effect in relation to Terengganu subject to the following modifications, that is to say:

(a) in Clause (1), for the reference to land which immediately before Merdeka Day was a Malay reservation in accordance with the existing law, there shall be substituted a reference to land which, immediately before the passing of the said Enactment, was a Malay holding; and

(b) subject as aforesaid, any reference to the existing law shall be construed as a reference to the said Enactment.

National Land Council

91. (1) There shall be a National Land Council consisting of a Minister as chairman, one representative from each of the States, who shall be appointed by the Ruler or Yang di-Pertua Negeri, and such number of representatives of the Federal Government as that Government may appoint but, subject to Clause (5) of Article 95E, the number of representatives of the Federal Government shall not exceed ten.

(2) The chairman may vote on any question before the National Land Council but shall not have a casting vote.

(3) The National Land Council shall be summoned to meet by the chairman as often as he considers necessary but there shall be at least one meeting in every year.

(4) If the chairman or a representative of a State or of the Federal Government is unable to attend a meeting, the authority

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Art. 91

See Art. 95E(1), (2) & (5)(a).

Clause (1)

- a. The words “not exceeding ten” which appeared after the words “and such number” were deleted and the words “but, subject to Clause (5) of Article 95E, the number of representatives of the Federal Government shall not exceed ten” were added by Act 26/1963, section 70, in force from 16-09-1963.
- b. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

by whom he was appointed may appoint another person to take his place at that meeting.

(5) It shall be the duty of the National Land Council to formulate from time to time in consultation with the Federal Government, the State Governments and the National Finance Council a national policy for the promotion and control of the utilization of land throughout the Federation for mining, agriculture, forestry or any other purpose, and for the administration of any laws relating thereto; and the Federal and State Governments shall follow the policy so formulated.

(6) The Federal Government or the Government of any State may consult the National Land Council in respect of any other matter relating to the utilization of land or in respect of any proposed legislation dealing with land or of the administration of any such law, and it shall be the duty of the National Land Council to advise that Government on any such matters.

Chapter 5—National development

National development plan

92. (1) If, after a recommendation from an expert committee and after consultation with the National Finance Council, the National Land Council and the Government of any State concerned, the Yang di-Pertuan Agong is satisfied that it is conducive to the national interest that a development plan be put into operation in any area or areas in one or more of the States, the Yang di-Pertuan Agong may, after publishing the plan, proclaim the area or areas as a development area; and thereupon Parliament shall have power to give effect to the development plan or any part thereof, notwithstanding that any of the matters to which the plan relates are matters with respect to which, apart from this Article, only States would have power to make laws.

(2) Any Act passed in pursuance of this Article shall recite that it has been so passed and that the provisions of Clause (1) have been complied with; and Article 79 shall not apply to any Bill for such an Act or any amendment to such a Bill.

(3) In this Article, “development plan” means a plan for the development, improvement, or conservation of the natural resources

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Art. 92

See Art. 95E(1), (3) & 108(4)(e).

of a development area, the exploitation of such resources, or the increase of means of employment in the area.

(4) Without prejudice to their power under any other Article to require any interest in land to be acquired or granted for federal purposes, the Federal Government may from time to time require the reservation for the purposes of a development plan, to such extent as they may specify, of any land in a development area which is not occupied by private persons; but any diminution, in consequence of the reservation, of the annual revenue received by a State shall be made good to the State by the Federation.

(5) All income received by the Federation through the operation of a development plan shall, subject to Clause (6), be applied—

- (a) in the first instance, for the provision of capital and the meeting of working expenses for the development plan;
- (b) in the second instance, for the repayment to the Federation of any expenditure, including expenditure under Clause (4), incurred by the Federation in operating the plan; and
- (c) as to the balance, for payments to the State in which the development area is situated or, if it is situated in two or more States, to those States in such proportions as the Federal Government may determine.

(6) If it is agreed between the Federal Government and the Government of any State which includes the whole or any part of the development area that any expenditure incurred in operating the development plan is to be met by the State, any expenditure so met shall be repaid to the State and the repayment shall rank *pari passu* with the repayment to the Federation of any expenditure incurred by the Federation.

(7) Parliament may repeal or amend any Act passed in pursuance of this Article, and for that purpose may make such incidental and consequential provisions as it may consider necessary.

(8) Nothing in this Article shall affect the power of Parliament or of the Legislature of any State—

- (a) to impose such taxes or rates as it is authorized to impose under any other provision of this Constitution; or

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- (b) to make from the Federal Consolidated Fund or the State Consolidated Fund, as the case may be, grants not repayable under Clause (5) or (6),

except that where, in pursuance of Clause (1), a rate is imposed on any property by federal law which, but for this Article, might have been imposed by State law, no rate of the same kind shall be imposed by State law for any period for which the rate imposed by federal law is payable.

*Chapter 6—Federal surveys, advice to States and
inspection of State activities*

Inquiries, surveys and statistics

93. (1) The Federal Government may conduct such inquiries (whether by Commission or otherwise), authorize such surveys and collect and publish such statistics as it thinks fit, notwithstanding that such inquiries, surveys and collection and publication of statistics relate to a matter with regard to which the Legislature of a State may make laws.

(2) It shall be the duty of the Government of a State, and of all officers and authorities thereof, to assist the Federal Government in the execution of its powers under this Article; and for this purpose the Federal Government may give such directions as it may deem necessary.

Federal powers in respect of State subjects

94. (1) The executive authority of the Federation extends to the conduct of research, the provision and maintenance of experimental and demonstration stations, the giving of advice and technical assistance to the Government of any State, and the provision of education, publicity, and demonstration for the inhabitants of any State, in respect of any of the matters with respect to which the Legislature of a State may make laws; and the agricultural and forestry officers of any State shall accept any professional advice given to the Government of that State under this Clause.

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Art. 93

See Art. 80(2) & 94(3).

Art. 94

See Art. 79(1), 80(2) & 95E(1).

Clause (1): See Art. 95E(4).

(2) Notwithstanding anything in this Constitution, the existing Departments of Agriculture, Commissioner of Lands, Forestry and Social Welfare may continue to exercise the functions exercised by them immediately before Merdeka Day.

(3) Nothing in this Constitution shall prevent the Federal Government from establishing Ministries or Departments of Government to exercise the functions of the Federal Government under Article 93 and this Article in relation to matters within the legislative authority of a State, and such matters may include soil conservation, local government and town and country planning.

Inspection of State activities

95. (1) Subject to Clause (3), in exercising the executive authority of the Federation any officer authorized by the Federal Government may inspect any department or work of a State Government with a view to making a report thereon to the Federal Government.

(2) A report made under this Article shall, if the Federal Government so direct, be communicated to the State Government and laid before the Legislative Assembly of the State.

(3) This Article does not authorize the inspection of any department or work dealing only with or carried on only with respect to matters within the exclusive legislative authority of a State.

Chapter 7—National Council for Local Government

National Council for Local Government

95A. (1) There shall be a National Council for Local Government consisting of a Minister as Chairman, one representative from each of the States, who shall be appointed by the Ruler or Yang di-Pertua Negeri, and such number of representatives of the Federal Government as that Government may appoint but, subject to Clause (5) of Article 95E, the number of representatives of the Federal Government shall not exceed ten.

(2) The Chairman may vote on any question before the National Council for Local Government and shall have a casting vote.